CONTRACT OF LEASE

This Contract of Lease, made and entered on 12th day of July, 2024 at City of Santa Rosa, Laguna, Philippines, by and between:

ENCHANTED KINGDOM, INC., a corporation duly organized and existing under and by virtue of the laws of the Philippines, and having its principal place of business at San Lorenzo South, Santa Rosa City, Laguna, represented herein by its **Chief Operating Officer, CYNTHIA R. MAMON, Ph.D.**, and its **Chief Finance Officer, MELISSA Y. MONICAYO,** hereinafter referred to as the "**LESSOR**";

-and-

MARY GRACE FOODS, INC., with the brand name "**MARY GRACE**" a corporation duly organized and existing under and by virtue of the laws of the Philippines, and having its principal place of business at Lot 25 & 27 Marian Road 2, San Martin De Porres, Parañaque City, represented herein by its **Director**, **ADRIAN P. DIMACALI**, hereinafter referred to as the **"LESSEE".**

WITNESSETH:

WHEREAS, **LESSOR** is the real and absolute owner and holds legal title to a commercial space known as, **PORTICO @ ENCHANTED KINGDOM** (the "PORTICO") located at Enchanted Kingdom Theme Park (the "PARK"), and covered by Original/Transfer Certificate of Title **("OCT/TCT")** No. T-318303, issued by the Register by Deeds of Calamba Branch. A copy of the first page of OCT/TCT is hereto attached as **ANNEX A-1** and made an integral part hereof.

WHEREAS, **LESSEE** desires to lease a unit in the Portico, more particularly described in **ANNEX A-2** hereof (the "Leased Premises"), and **LESSOR** is willing to lease the same unto **LESSEE** subject to the terms and conditions hereinafter agreed upon.

WHEREAS, for and in consideration of the payment of rents and other sums due hereunder, and the faithful compliance with all the conditions and covenants hereinafter contained, the **LESSOR** hereby leases, lets, and demises unto the **LESSEE**, and the latter does hereby accept under lease, floor space constituting the Leased Premises, as shown in the attached sketch or location plan marked as Annex A-2 which is made an integral part of this Contract.

WHEREAS, this Lease is granted by the **LESSOR** and accepted by the **LESSEE** subject to the following terms, covenants, conditions and restrictions.

ARTICLE 1 – DEFINITIONS AND INTERPRETATION

1.1 Definitions: As used herein, the following terms shall have the following respective meanings:

"Park" shall refer to Enchanted Kingdom Theme Park where the Leased Premises are located.

"Common Areas" refer to all areas and facilities in the Park's PORTICO provided by the **LESSOR** at its own expense and designated by the **LESSOR** for the general use and convenience of all **LESSEE**s in the PORTICO, their respective employees, customers and guests. Without limiting the generality of the foregoing, Common Areas shall include midways, parking areas, driveways, pedestrian passageways, sidewalks, corridors, covered or air-conditioned buildings and comfort rooms.

"Gross Rental Income" shall mean all consideration agreed upon for the use of the Leased Premises.

"Gross Sales" shall mean the selling price or total consideration for the sale, whether in cash, on credit, or partly in cash and partly on credit, check, gift certificates, vouchers, coupons, online, e-wallet or other promotional evidences received, barter, exchange or

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

otherwise, of goods and products by the **LESSEE** upon or from the Leased Premises, and the total consideration for the performance of any service or act within the Leased Premises, and the use of any of the facilities thereof, accruing to the **LESSEE** while remaining or occupying any part of the Leased Premises, regardless of whether such selling price or consideration shall be actually collected or received by the **LESSEE**. The term shall include cash overages and amounts gross of cash shortages; receipts from other services; sale of promotional items; sales gross of discounts, unless such discounts are for promos previously cleared with and approved by the **LESSOR**; deposits not refunded to purchasers; charges for sales on credit; charges for services rendered to other stores or offices of the **LESSEE**, or for goods or products directly or indirectly ordered from or caused by the **LESSEE**'s establishment in the Leased Premises; sale of any product or service by any "outside" or travelling salesman of the **LESSEE** when such salespersons are supervised by or must report their activities and sales to the **LESSEE** or to any employee of the **LESSEE** in the Leased Premises; reimbursements received for damaged goods; and other miscellaneous income. Any transaction on an installment basis involving the extension of credit or deferral of payment, such as, but not limited to "lay away" sales and conditional sales, shall be treated as a sale in the full price reckoned at the time the goods or products is invoiced to the customer. The term shall exclude returns and refunds; recoveries from bad debts on which rent had previously been paid, the amount of the required sales tax, value-added tax or other similar taxes as determined under applicable law, when these are recorded separately in the books of accounts of the **LESSEE**; service charges, if any, actually distributed; and the proceeds from the sale of the **LESSEE**'s used fixtures and office equipment which do not form part of their respective inventory and stock-in-trade.

"Common Parking Areas" shall refer to parking areas located in the Park, established, operated, maintained and designated for the common use of the **LESSEE**s of the PORTICO, their respective clients, customers, guests or employees.

"Force Majeure" shall mean an act, event or cause which is unexpected or unforeseen, or if foreseen, must be impossible to avoid, or which is beyond the control of the **LESSOR** or the **LESSEE**. This term includes pandemic, rebellion, insurrection, labor unrest, lockout, work stoppage, strikes on a citywide or nationwide scale, flood, typhoon, earthquake, robbery, theft, terrorism, or any other crime.

"Leasable Area" shall refer to the total floor space leased to the **LESSEE** computed by measuring from the outside finish of outer structure or building walls and to the center of partitions that separate such floor space from adjoining leasable areas as applicable, without any deduction for columns, projections or other structural elements common to the structure or building, and includes any extension area occupied by the **LESSEE**.

"Leased Premises" shall refer to the area specifically described in Annex A-2.

"Park Hours" shall mean days and hours the Park is open to the public or to private functions as designated by the **LESSOR**.

"Week" shall refer to calendar days starting Monday and ending Sunday.

1.2 Interpretation: The following rules shall be observed and applied in this Contract, except when the context clearly indicates otherwise:

1.2.1 The "Parties" collectively refers to the **LESSOR** and **LESSEE**.
1.2.2 The singular number includes the plural form.
1.2.3 The headings or titles used in this Contract are inserted for the convenience of reference only and shall not affect the interpretation of the respective clauses and paragraphs of this Contract.

ARTICLE 2 – LEASE TERM AND DELIVERY OF LEASED PREMISES

2.1 Term: This Lease shall be for a term specified in Annex B. Unless otherwise renewed under the conditions established hereunder, this Lease shall not be deemed extended beyond the date specified herein for its termination for any reason whatsoever. There shall be no tacit renewal of this Contract, notwithstanding the continuation of the **LESSEE** in the possession of

ENCHANTED KINGDOM SANTA ROSA CITY LAGUNA

the Leased Premises for any length of time after expiration of the term of this Lease. No interruption in the physical possession of the Leased Premises by the **LESSEE** for any reason whatsoever shall serve to automatically extend the term of this Contract.

This Lease may be renewed for a period specified in Annex B, upon the written agreement of the **LESSOR** and the **LESSEE** and under such terms and conditions as may be acceptable to them; provided that, the **LESSEE** shall have faithfully complied with all the terms of a previous Contract as applicable, and the **LESSEE** shall notify the **LESSOR** in writing of its desire to renew the lease at least ninety (90) days prior to its expiration. In the event that the **LESSOR** and **LESSEE** are unable to agree on the terms and conditions under which this Lease shall be renewed within the ninety-day period prior to the expiry of the Lease, then this Lease shall automatically terminate and the **LESSOR** shall be entitled to the rights granted under this Contract by reason of such termination.

2.2 Delivery of Leased Premises: The **LESSOR** shall deliver to the **LESSEE** physical possession of the Leased Premises in "as is" condition on or before the date specified in Annex B for the delivery of the Leased Premises to the **LESSEE**. On or before the Rental Commencement Date, the **LESSEE** shall complete any and all works necessary to render the Leased Premises suitable for use in accordance with the plans and specifications approved by the **LESSOR**.

If the **LESSOR** is unable to transfer physical possession of the Leased Premises to the **LESSEE** on or before the date specified in Annex B for the delivery of Leased Premises due to (i) the refusal of a prior **LESSEE** to vacate the Leased Premises notwithstanding the termination of the Lease term agreed upon between such prior **LESSEE** and the **LESSOR**, or (ii) any other reason beyond the control of **LESSOR**, the **LESSOR** shall not be subject to any liability for the failure to deliver the Leased Premises to the **LESSEE** on the date specified therefore in Annex B, neither shall such failure affect the validity of this Lease or the obligations of the **LESSEE** hereunder; provided that the Rental Commencement Date shall be deferred to a date to be determined by the **LESSOR**.

ARTICLE 3 – EXTENT AND USE OF THE LEASED PREMISES

3.1 Use: The Leased Premises shall be used by the **LESSEE** itself only for the uses specified in Annex B. The **LESSEE** shall not divert the Leased Premises to other uses, without the prior written consent of the **LESSOR**, it being expressly agreed that if, at any time during the term of this Lease and without the previous written consent of the **LESSOR**, the said premises are used for purposes other than that what has been agreed upon, the **LESSOR** shall have the option to (i) cancel this Contract in accordance with Article 13.1 hereof and the **LESSOR** shall and thereupon become entitled to exercise all the rights provided hereunder; (ii) increase the Basic Rent and/or Minimum Rent and Revenue Share; or (iii) compel the **LESSEE** to stop the unauthorized activities.

3.2 Conduct of Business: The **LESSEE** shall at all times, during the term of this Lease, conduct its business in a reputable manner in accordance with the business and operating standards of a world-class theme park and during such days and operating hours as may be fixed by the **LESSOR** in accordance with the Park schedule. **LESSOR** reserves the right to impose penalties on the **LESSEE** in accordance with Annex B for the latter's failure to comply with the foregoing.

3.3 Government Permits: All government permits or licenses, including Authority to Print (ATP) for invoices and official receipts, which are necessary or appropriate for the conduct of business by the **LESSEE** in the Leased Premises shall be obtained by the **LESSEE** and shall be maintained by the **LESSEE** for the duration of the Lease term, and all costs and expenses to be incurred in connection with these permits or licenses shall be for the account of the **LESSEE**. Copies of the said permits and licenses, and any renewals thereof, shall be furnished to **LESSOR** not later than fifteen (15) days after issuance thereof. Copy of the permits and licenses shall be prominently displayed in the outlet and should be visible to guests as required by the concerned government agency in a way that such display does not hamper the outlet's operations.

3.4 Common Area: The lease of the Leased Premises from the **LESSOR** shall include the use in common by the **LESSEE** and other **LESSEE**s of the Common Areas of the PORTICO as far as the same are necessary for the use or enjoyment of the Leased Premises and subject to the right of the **LESSOR** to restrict such use in any way. The **LESSOR** has the right to:

ENCHANTED KINGDOM INC. SANTA ROSA CITY LAGUNA

3.4.1 to provide for the free and uninterrupted passage and running of water, drainage, electricity, telecommunications or other public utilities or services through the installation of conduits, pipes, wires, cables or ducts as are now or may be hereafter be installed in, on or under the Leased Premises, serving or capable of serving the Park, and to enter the Leased Premises to inspect, repair or maintain such conduits, pipes, wires, cables or ducts;

3.4.2 to improve, change, alter, extend, reduce, add or otherwise deal with the arrangement, design or decoration of the Common Areas, provided that in exercising such right the **LESSOR** will endeavor to cause as little inconvenience to the **LESSEE** as practicable under the circumstances;

3.4.3 to make, impose, adopt, supplement, abolish or amend such regulations as it considers necessary for the management, operation or maintenance of the PORTICO, or the operation and use of the Common Areas, Common Parking Areas, private roads, sidewalks, driveways, entrances or exits in the Park;

3.4.4 to appoint, ratify or confirm any person to manage and administer the PORTICO and to delegate to such person the power to adopt rules and regulations as it shall deem necessary for the management, maintenance or operation of the PORTICO, and to implement the rules and regulations adopted by the **LESSOR** pursuant to Article 3.4.3; and

3.4.5 to undertake the improvement of the Park or any development work within the vicinity of the Park, in such a manner as to cause the least inconvenience to the **LESSEE**, its employees, guests, customers and clients, and for this purpose, the **LESSEE** shall not hold the **LESSOR** liable for any resulting disturbance or discomfort arising out of such development work or improvement.

3.5 Extent of Leased Premises: The Common Areas within the Park are not part of the Leased Premises, and no product or other property of the **LESSEE** shall be placed therein or thereon. The **LESSOR** shall have the right to cause the removal of the product or other property belonging to the **LESSEE** found on or within the corridors, hallways or other Common Areas of the Park and charge the cost of removal, handling and storage (if necessary) to the **LESSEE**.

3.6 No Goodwill. The grant to the **LESSEE** of the physical possession, use and enjoyment of the Leased Premises confers no goodwill or patronage rights over the Leased Premises to the **LESSEE**, it being recognized that such rights exclusively belong to the **LESSOR** as owner of the Leased Premises. Neither shall the **LESSEE** have any right to sell or dispose of said goodwill or patronage rights to any person.

ARTICLE 4 – RENT AND OTHER PAYMENTS

4.1 Rent: The commencement of the obligation of the **LESSEE** to pay rent and the determination of the amount of rent due from the **LESSEE** for the Leased Premises shall be governed by the provisions of Annex B. The rent shall be liquidated and paid based on the schedule indicated in Annex B.

4.2 Taxes. Payment of rentals shall be made net of the required withholding tax on rentals. The **LESSEE** shall remit the taxes withheld directly to the Bureau of Internal Revenue (BIR) and shall indicate in the creditable withholding tax return to be filed with the latter that the taxes being withheld are to be credited to the **LESSOR**. Proof of such remittance (BIR Form 2307) shall be submitted to the **LESSOR** within three (3) business days from such remittance. Failure to provide the BIR Form 2307 within five (5) business days shall constitute an unsettled obligation by the LESSEE and LESSOR has the right to withhold the next remittance until the subject BIR Form 2307 is submitted by the **LESSEE**.

Other than the **LESSOR**'s real property taxes and income taxes or taxes required to be withheld from the rental due to the **LESSOR** which shall be credited against its income taxes, all taxes due by reason of the receipt of rental and all other amounts which the **LESSEE** is required to pay the **LESSOR** as provided hereunder, as well as the documentary stamp taxes or other taxes or other taxes accruing by reason of the execution of this Contract shall be for the account of the **LESSEE**.

ENCHANTED KINGDOM SANTA ROSA CITY LAGUNA

In the event that at any time during the term or renewal of this Lease, the real property tax on the land on which the Leased Premises stands is increased or there is levied any new or additional assessment or charge on the land on which it stands, then the Regular Basic Rent or Regular Minimum Rent in force on the date the real property tax, assessment or change is increased or imposed, may likewise be increased by the **LESSOR** in direct proportion to the increase in or additional real property taxes, assessment or charge.

4.3 Construction Bond. Prior to any construction or renovation of the Leased Premises, the **LESSEE** shall submit a cash construction bond with a face amount equal to the amount specified in Annex B as security for the repair or reconstruction of any damage caused to the property of the **LESSOR** or of any tenant, occupant or guest in the Park arising out of or in connection with the fault or negligence of the contractors, suppliers or workers undertaking such construction or renovation or the failure of the **LESSEE** to comply with the **LESSOR**'s Construction Guidelines and House Rules, and all other requirements prescribed by the **LESSOR** for the performance of such construction or renovation work. The construction bond shall be returned to the **LESSEE** without interest two (2) weeks after the completion of construction or renovation work, less any construction-related charges due to the **LESSOR**, subject to the **LESSEE**'s compliance with all the conditions specified for the return of the bond and after the issuance of the Final Clearance to Operate by the **LESSOR**.

4.4 Security Deposit. On the date specified in the applicable statement of account to be sent by the **LESSOR**, the **LESSEE** shall provide the **LESSOR** with Security Deposit in cash or check upon signing of this Contract in an amount specified in Annex B to answer and stand as security for the proper and due performance of all the **LESSEE**'s obligations under this Contract. The existence of such security, however, does not and should not excuse the **LESSEE**'s non-payment of rent on a regular monthly basis, or of any other sum required to be paid hereunder on the due date specified therefore. The Security Deposit shall be maintained by the **LESSEE** at the level specified in Annex B, and shall pay the incremental amount as and when the Regular Minimum Rent and Revenue Share increase. Such increase shall be payable on the due date specified in the applicable statement of account. Should the **LESSEE** decide to renew this Contract and the **LESSOR** agrees to the renewal, the Security Deposit that is already with the **LESSOR** shall be forwarded as part of the renewed contract. Should there be additional amount based on the renewed contract, such amount shall have to be paid by the **LESSEE** upon signing of the new contract.

The security deposit referred to in this Article shall be forfeited in favor of the **LESSOR** upon the occurrence of the following events: (i) the **LESSEE** fails to occupy the Leased Premises for the full term of the lease or any extension or renewal thereof, or (ii) this Contract is terminated by the **LESSEE**, or (iii) breach of contract by the **LESSEE**. Should the **LESSEE** terminate this Contract but with the **LESSOR**'s conformity, the security deposit shall be returned to the **LESSEE**, net of the amounts which may be deducted therefrom under this Article.

The security deposit shall be returned to the **LESSEE**, without interest, only after the expiration of the term of this Lease and after the **LESSEE** shall have completely and satisfactorily vacated and delivered the Leased Premises to the **LESSOR**, less whatever amounts the **LESSEE** may owe the **LESSOR** or which the **LESSOR** may apply against the security as provided hereunder. It shall be understood, however, that the application of the security against any unpaid obligation of the **LESSEE** shall be effected only at the termination of the lease. The **LESSOR** shall, notwithstanding the delivery of the Leased Premises to the **LESSOR** by the **LESSEE**, have the right to withhold any portion of the security until the **LESSOR** shall have received statements of account from utility companies supplying telephone, water, electric power or public utility services to the Leased Premises covering the period ending on the date the **LESSEE** shall have completely vacated and delivered the Leased Premises to the **LESSOR**. The amount withheld shall answer for the payment of such statements of account and the balance thereof remaining with the **LESSOR** after such payment shall be returned to the **LESSEE** without interest. Likewise, should the **LESSEE** have any other obligation which remains due and unpaid under any other contract with the **LESSOR**, the **LESSOR** shall have the right to apply the amount of these unpaid obligations against the security in settlement thereto upon the termination of the Lease.

4.5 Advance Lease: On the date specified in the applicable statement of account to be sent by the **LESSOR**, the **LESSEE** shall pay a one (1) month advance lease in the amount indicated in Annex B. The advance lease shall be applied to the last month of this Contract, unless there are existing unpaid amounts due from the **LESSEE** in which case the advance lease shall be

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

applied first to such unpaid amounts. The advance lease shall be adjusted based on the actual lease due for the month.

4.6 Use of POS System: The **LESSEE,** as applicable, shall pay the **LESSOR** a monthly fee for the use of the **LESSOR**'s POS system in the amount as indicated in Annex B. The **LESSEE** has the option to use the **LESSOR**-prescribed hardware or the **LESSEE**'s own hardware provided such hardware complies with the system requirements of the **LESSOR**.

Any cost for new enhancements or features in the POS System that may be required by the **LESSOR** and as may be agreed by both the **LESSOR** and **LESSEE** shall be for the account of the **LESSEE**.

In case of termination of this Contract, the **LESSEE** has the obligation to process the cancellation of the POS system's Permit to Use (PTU) with the BIR and provide **LESSOR** with a copy of the BIR certification of cancellation. Failure to provide such continues to oblige the **LESSEE** to comply with the BIR's regular POS reportorial requirements and also pay the **LESSOR** the rental fee for the software, chargeable against any deposits that the **LESSEE** may still have from the **LESSOR**.

4.7 Stockroom or Use of Central Warehouse: In the event that the **LESSEE** occupies a stockroom or similar storage space within the Park premises but outside of the Leased Premises, the **LESSEE** shall pay the **LESSOR** a monthly rent at the rate indicated in Annex B. The **LESSEE** undertakes to obtain the prior written approval of the **LESSOR** for the construction of stockroom or similar storage space within the Park premises. Should the **LESSEE** opt to store its goods in the **LESSOR**'s Central Warehouse, a corresponding fee shall be assessed depending on the number of days and the area size to be occupied.

4.8 Interest and Penalty. Without prejudice to the exercise by the **LESSOR** of its rights under the penal provisions herein, the **LESSEE** shall pay to the **LESSOR** interest on any amount herein provided to be paid by the **LESSEE** that is not paid or tendered on time, at the rate of TWO PERCENT (2%) PER MONTH or at the maximum prevailing interest rate allowed by law, to be determined solely by the **LESSOR** at the time the obligation is due, whichever is higher, to be computed from the date of delinquency until paid in full.

In addition to the preceding interest charges, all arrears (whether principal and/or interest) shall be subject to a penalty equivalent to THREE PERCENT (3%) of the total amount payable to the **LESSOR**, inclusive of interest, to be computed from the date of delinquency until fully paid.

The preceding interest and penalty charges shall apply to any and all arrearages to be paid by the **LESSEE** to the **LESSOR** by virtue of this Contract, including, but not limited to, **LESSEE**'s share in the expenses for the common area use and services, taxes, assessments, and charges for public utilities.

Interest and penalty under this Article shall not apply to amounts due from the **LESSEE** that are automatically deducted by the **LESSOR** from the **LESSEE**'s share in sales, except in cases where amounts due from the LESSEE is higher than the LESSEE's sales.

In case of cancellation or termination of this Contract due to default or breach of its terms by the **LESSEE**, the **LESSEE** shall pay the **LESSOR** all unpaid rents, fees, charges, assessments, reimbursements, interests and penalties to which the **LESSOR** may be entitled.

4.9 Common Area Expenses. In addition to the payment of rental and other amounts due hereunder, the **LESSEE** shall pay on the due date specified in the applicable statement of account for its monthly share in common area expenses incurred or to be incurred by the **LESSOR** in connection with the proper operation and maintenance of the Park and the enhancement of property value therein, at a rate or in an amount specified in Annex B. Common Area Expenses shall include expenses and other costs incurred in the operation, management, maintenance and repair of Common Areas in the Park, such as but not limited to, expenses for the ground maintenance, drainage, electrical facilities, landscape maintenance, janitorial services, general pest control services, security, water. The obligation of the **LESSEE** to reimburse the **LESSOR** share in the Common Area expenses shall commence upon the effectivity of this lease or upon turnover of Leased Premises, whichever date comes later. The rate or the amount specified in Annex B shall be correspondingly increased in the event that the service agency increases the service charges payable in connection with the service or utility provided to the Common Areas

ENCHANTED KINGDOM SANTA ROSA CITY LAGUNA

or Leased Premises. The amount of such increase which shall be determined solely by the **LESSOR** shall be effective and demandable on or during the month in which the increase in the charges shall have been implemented by the utility company or service agency.

4.10 Advertising and Promotional Expenses. In order to promote the business in the Park where the Leased Premises is located, the **LESSOR** may conduct from time to time advertising and promotional activities and events which it may consider appropriate and the **LESSEE** agrees to share with all the other **LESSEE**s in the Park in the costs and expenses of such advertising and promotional activities at a rate to be determined by the **LESSOR**. The **LESSEE**'s share shall be paid on the date specified in the applicable statement of account.

4.11 Other Utilities. The deposits, fees, costs or other charges to be incurred for supplying the Leased Premises with power, water, telephone, telecommunications, garbage disposal and other public services or utilities shall be borne by the **LESSEE** and shall be based on the actual consumption or use thereof by the Leased Premises. To the extent applicable, the **LESSOR** may require the **LESSEE** to make payment of such deposits, fees, costs or other charges directly to the company supplying the utility or public service. For this purpose, the **LESSOR** shall be entitled to require the **LESSEE** to install an electric meter for the exclusive use of the Leased Premises and effect the payment of charges for electrical consumption directly to the public utility company concerned. Should such direct payment be not feasible in the opinion of the **LESSOR**, then the **LESSOR** shall determine the liability of the **LESSEE** for such deposits, fees, costs or other charges on the same basis which utility or service company use in determining the **LESSOR**'s liability to such companies for supplying such utilities or services to the Park. The **LESSOR** shall be entitled to charge the **LESSEE** a reasonable service charge for the administrative services relative hereto, whether or not payment by the **LESSEE** of such deposits, fee, costs or other charges shall be made directly to the public utility companies. The service charge shall be made payable on the due date specified in the applicable statement of account. Reimbursement for or payment of deposits, fees, costs, or other charges for the use or consumption of water, electricity or other utilities for the Leased Premises which are not paid directly to the utility companies during any given month will be payable to the **LESSOR** on the due date specified in the applicable statement of account.

4.12 Lien. Unpaid rents and charges payable by the **LESSEE** to the **LESSOR** for one (1) year under this Contract shall constitute a preferred lien on all properties of the **LESSEE** found or located in the Leased Premises in accordance with Articles 2241 and 2243 of the Civil Code. For this purpose, the **LESSOR** is hereby authorized to prevent the removal of the said properties from the Leased Premises or demand their return from any possessor thereof.

4.13 Application of Payments: Any payment received by the **LESSOR** shall be applied against the statement of account or billing with the earliest date. In the event that the payment of interest, penalty, rent or other charges is covered by one statement of account, then the payment received by the **LESSOR** shall be applied in the payment of obligations stated therein in the following order or priority: (i) first, against unpaid rent, (ii) secondly, against any deficiency with respect to the security deposit under Article 4.4, (iii) finally, against other charges or interest and penalty. Should the payment received be insufficient to completely settle any outstanding obligation, whether covered in one statement of account or billing, or otherwise, then subsequent payment(s) to be received from the **LESSEE** shall be applied in the payment of such unpaid amount.

ARTICLE 5 – LESSEE'S PRODUCTS

5.1 Products: The **LESSEE** shall submit a list of its products and their retail prices for **LESSOR**'s approval prior to the signing of this Contract. The list shall form part of this Contract as Annex C. **LESSOR** should be informed in writing of any changes/additions/deletions to the existing product list. Changes / additions / deletions must be communicated in writing to the **LESSOR** at least five (5) days prior to proposed effective date. The **LESSEE** shall regularly change and/or develop products/concepts to boost its sales which shall be subject to the approval of both Parties.

LESSOR may ask the **LESSEE** to withdraw or revoke items to be sold by the **LESSEE** in the Leased Premises if the said products are not consistent with the Park's image.

5.2 Supplies and Materials: The **LESSEE** may purchase its supplies and materials from the **LESSOR** at the **LESSOR**'s purchase cost plus handling fee indicated in Annex B. The supplies and materials that may be purchased from the **LESSOR** include, but not limited to, beverages,

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

liquefied petroleum gases, CO2 tanks, ice cream gallons, napkins, spoons, straws, beverage cups with lids and packaging materials.

5.3 Prohibited Products: Selling of unsafe, obscene products and those that violate intellectual property rights is strictly prohibited.

ARTICLE 6 – MARKETING AND PROMOTIONS

6.1 Entitlements by the **LESSEE**: The **LESSOR** undertakes to accord the **LESSEE** the following entitlements:

6.1.1 Acknowledge, as far as practicable, the **LESSEE** in advertising, publicity and promotional materials prepared by the **LESSOR** in relation to the Park. This includes, but not limited to, print, radio, and television advertisement, promotional literature, institutional exhibits and displays, press and photo releases, features, articles and casual radio plugs. The **LESSEE** agrees to share with **LESSOR** in the costs and expenses of such advertising and promotional activities at a rate to be determined by the **LESSOR**

6.1.2 Allow illustrations of the Park's logo, mascots or other similar themed characters to be used by the **LESSEE** in connection with its advertising and promotional activities subject to the prior written approval of the **LESSOR**.

(i) Control of creative materials shall remain with the Party which shoulders the production expenses of the particular material. However, such use shall at, all times, be in accordance with the instructions and specifications as well as the prior clearance of both the **LESSOR** and the **LESSEE**.

(ii) All illustrations and signages or other uses of the Park's logo, mascots, themed characters or other similar intellectual property rights owned or licensed to the **LESSOR** to be used in connection with any marketing or promotional activity or other purposes whatsoever shall have the prior written approval of the **LESSOR**.

6.1.3 Right to conduct in-Park sampling of **LESSEE**'s products subject to prior written approval by the **LESSOR**.

6.1.4 Right to use the Park as venue for product launches of the **LESSEE**'s products with prior written approval by the **LESSOR**.

6.1.5 As far as practicable, the right of **LESSEE**'s product mascots to participate in the in-Park parades and special activities upon prior written approval by the **LESSOR**.

6.1.6 Right to conduct in-Park promotions such as, but not limited to, leafletting, streamer displays at the parking lot and bandstand, subject to the guidelines issued, review and written approval by the **LESSOR**.

6.2 Undertakings by the **LESSEE**: The **LESSEE** undertakes to comply with the following:

6.2.1 Submit to **LESSOR** its annual marketing and promotions program for synchronization with the **LESSOR**'s marketing programs and events or participate in the business planning and reviews to be initiated by the **LESSOR**.

6.2.2 Actively participate in all of the **LESSOR**'s marketing programs for the Park, as may be agreed by both Parties, which include, but not limited to, discount coupon promotions, electronic cash acceptance, loyalty programs, in-park events, etc.

6.2.3 Advertise the opening of its outlet at the Park through the **LESSEE**'s marketing channels.

6.2.4 As applicable and as may be agreed by both Parties, conceptualize and implement a ticket-based promotional campaign which shall be integrated in the conduct of its business therein and, if the **LESSEE** owns or is connected to or affiliated with a store/restaurant chain, in the conduct of the business operations of the said store/restaurant chain.

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

(i) Such ticket-based promotional campaign shall require the purchase of Park tickets by the **LESSEE** from the **LESSOR** in such quantities as may be agreed upon.

(ii) Prior to implementation, the ticket-based promotional campaign shall require the prior approval of the **LESSOR**.

ARTICLE 7 - RECORDING AND REPORTING OF SALES

7.1 Registered Invoices/Tapes: Each transaction effected within the Leased Premises must be covered by an appropriate sales invoice bearing only the name of the **LESSEE**'s branch or outlet operating in the Leased Premises or using the Point-of-Sale (POS) system provided by the **LESSOR** as indicated in Annex B and registered with the Bureau of Internal Revenue (BIR) under the name of the **LESSEE**.

7.2 Sales Invoices/Official Receipts: In the event that the POS machine is non-operational, each transaction effected within the Leased Premises must be covered by a Sales Invoice (SI) or Official Receipt (OR), as applicable and as prescribed by the BIR, bearing only the name of the **LESSEE**'s branch or outlet operating in the Leased Premises.

7.3 Submission of Reports: To facilitate reconciliation of Gross Sales and amount of lease, the **LESSEE** shall submit to the **LESSOR** within the first seven (7) days of every calendar month a Statement of Gross Sales for the preceding month. Such Statement of Gross Sales shall be broken down by the **LESSEE** according to the number of Point of Sale Systems hooked up to the **LESSOR**, or from whatever sales recording system the transaction originated. The monthly Gross Sales reports submitted to the **LESSOR** should show the daily sales of the **LESSEE**. The monthly Gross Sales receipts shall be certified to by the chief operating officer, treasurer or any other authorized signatory of the **LESSEE**. Discrepancies noted during the reconciliation shall be effected by the **LESSOR** on the nearest payment schedule. The **LESSOR** shall have the right to withhold the release of the **LESSEE**'s share pending the sales reconciliation. Failure of the **LESSEE** to submit the required Gross Sales report within such 7-day period for at least three (3) months during one (1) lease year shall constitute a ground for the **LESSOR** to terminate this lease provided that the **LESSEE** is given an opportunity to remedy the violation within a reasonable time.

7.4 The **LESSEE** shall ensure close monitoring and control of its inventory. For deliveries to **LESSEE**'s Leased Premises, it shall be documented with a Delivery Receipt. Pull-out of damaged and/or slow-moving items by the **LESSEE** shall likewise be documented.

The **LESSEE** shall submit its daily beginning and ending inventory of raw materials, work in process, and finished goods, as may be applicable, each operating day as stated in Article7.5.

7.5 Recording and Accounting System: The **LESSEE** shall faithfully and accurately record all its transactions. The **LESSEE** shall maintain books of accounts and other business records. In this regard, the **LESSEE** shall coordinate with the **LESSOR**'s Comptrollership Division for the books of accounts and reports required to be maintained which will accurately reflect the transactions effected within the Leased Premises as basis for determining the lease due from the **LESSEE**. Any willful misrepresentation or dishonesty in registering in the POS or in invoicing by **LESSEE**'s representative or employee shall be ground for termination of this Contract, without prejudice to the rights and remedies of the **LESSOR** under this Contract.

7.6 Preservation and Audit of Records: The **LESSEE** shall keep all POS tapes, sales invoices/official receipts (bearing only the name and addresses of the branch of the **LESSEE** operating in the Leased Premises), sales summaries, books of accounts, such as but not limited to, the general ledger, cash receipts books and sales books, cash disbursement books, suppliers' invoices, consolidated books of account, supporting papers, and other business records the **LESSOR**'s authorized representatives may deem reasonably necessary to determine the **LESSEE**'s Gross Sales. The **LESSEE**, as applicable, shall further be required to assign separate receipt booklets for each of its Leased Premises in order to segregate the records of sales pertaining to each of them. These records shall be preserved for a period of three (3) years. The **LESSEE** shall allow the authorized agents of the **LESSOR** to enter into any part of the Leased Premises at all reasonable times during the term of this term of this Lease and to examine and photocopy all documents and records specified herein, and other pertinent records that are reasonably necessary to accurately determine the basis of rentals herein agreed upon, all with

ENCHANTED KINGDOM SANTA ROSA CITY LAGUNA

the least inconvenience and/or disturbance to the **LESSEE** or their respective operations. For this purpose, the **LESSEE** undertakes to make said records available to the authorized agents of the **LESSOR** at the Leased Premises during office or Park hours on the date scheduled by the **LESSOR**, or any postponement or resetting thereof. The **LESSOR** may require the **LESSEE** to send the documents and records to the **LESSOR** if said records are maintained elsewhere. In the event no photocopying machine is available within the Leased Premises, the **LESSEE** shall allow the **LESSOR**'s representative to bring out the necessary documents from the Leased Premises for photocopying; provided that, the **LESSOR**'s representative shall be accompanied by the respective personnel of the **LESSEE**. Any record or information thus obtained shall be considered confidential, material and important and, unless the **LESSOR** is required by any proper government agency or legally obliged to do so, the **LESSOR** shall not at any time or in any manner reveal or disclose such record or information without permission from the **LESSEE**.

In case the **LESSEE** has other branches, separate records of the sales of such other branches (including without limitation, receipts and books of accounts) which were derived from, or which were effected due to the **LESSEE**'s operations in the Leased Premises shall be maintained at all times in the Leased Premises.

ARTICLE 8 – COMMON AREAS AND PARKING

8.1 Use of Common Areas: During the term of this Lease, the **LESSEE** and its respective employees, agents, customers and guests shall have the non-exclusive right to use the Common Areas in the front of Park in common with all the other **LESSEE**s of the PORTICO, subject to any rights, powers and privileges reserved to the **LESSOR** as provided hereunder. Consequently, the use by the **LESSEE** of such areas may be denied, restricted or regulated pursuant to this Article.

8.2 Operation by the **LESSOR**: During the term of this Lease, the **LESSOR** shall operate, manage and maintain the Common Areas within the Park. The manner in which the Common Areas shall be maintained, operated and managed, and the amounts to be spent for such maintenance, operation and management, shall be subject to the sole discretion of the **LESSOR**. The **LESSOR** shall have the right from the time to time to promulgate rules and regulations governing the use of the Common Areas by the **LESSEE**s of the Park, their agents, customers and guest, and shall have the right to restrict or deny the use of or access to any part of the Common Areas, to such extent as may be legally sufficient in the opinion of the **LESSOR**'s counsel, to prevent a dedication thereof, or the accrual of rights of any person or of the public therein, or for any reason which the **LESSOR** believes shall redound to the benefit of all or some of the **LESSEE**s in the Park.

8.3 Parking: The **LESSEE** shall have the non-exclusive right to use, jointly with the other **LESSEE**s in the Park, the Common Parking Areas in the vicinity of the Leased Premises. Such use shall be subject to the following restrictions and regulations and to such other restrictions and regulations as may be promulgated from time to time by the **LESSOR** or the Association:

8.3.1 Vehicles owned or used by the **LESSEE**, its employees, guests, customers or clients may be parked in any of the Common Areas designated for parking, subject to the applicable payment of the fees or charges assessed by the **LESSOR** for such use if such parking slots are outside of the agreed free parking for the **LESSEE**. Delivery vans, trucks or vehicles owned or used by the **LESSEE**'s suppliers or other third persons for the purpose of delivering any product or commodity to the **LESSEE** shall not be allowed to park in Common Areas designated for parking nor along any road in the Park premises but shall for the purpose specified above, use the area designated by the **LESSOR** as a service area. At no time shall the **LESSEE** allow its business operations or activities to obstruct free ingress or egress to and from the Common Areas or obstruct any road in the Park premises.

8.3.2 The **LESSEE**, its employees, guests, customers or clients who use the Common Areas designated for parking within the Park outside of the agreed free parking slots for the **LESSEE** may be charged parking fees at the same rates charged to the general public. The **LESSEE** recognizes the absolute discretion of the **LESSOR** to designate the particular parking areas to be used by the **LESSEE**'s employees and fix the amount of the parking fees to be charged for the use of such parking areas.

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

8.3.3 The **LESSEE** recognizes the right of the **LESSOR** at any time to (i) re-locate driveways, entrances and exits leading to or from the Common Areas; (ii) increase or decrease their area; (iii) close existing Common Areas designate from parking and establish new areas for parking in different location(s); (iv) reserve certain areas within the Common Area to be used as the parking area of specific visitors; (v) increase, decrease, re-arrange or otherwise change the parking slots or parking patterns found therein.

ARTICLE 9 – UTILITIES AND INSTALLATIONS

9.1 Submission of Plans and **LESSEE**'s Installations: Complete working drawings and plans for the Leased Premises shall be in accordance with **LESSOR**'s guidelines and submitted by the **LESSEE** to the **LESSOR** for its approval prior to any construction and/or renovation in the Leased Premises. The **LESSEE** shall be responsible for securing all the necessary government permits and licenses for said construction, and all costs thereof shall be for **LESSEE**'s sole account.

9.1.1 Upon prior approval of the **LESSOR**, the **LESSEE** may install, at its own expense and at any time during the term of this Contract, such necessary installations in the Leased Premises as may be required by the **LESSEE**'s business as approved by the **LESSOR**, subject to the provisions of this Section, provided, that the strength and general structure of the building or the Leased Premises are not thereby impaired or otherwise adversely affected; Provided further, that the other conditions of this Contract are not thereby violated.

9.1.2 The installation of additional plumbing, electrical, and/or gas connections in the Leased Premises shall be for the sole account and expense of the **LESSEE**, and may be done only after **LESSEE** has submitted the necessary plans and obtained the prior written consent and approval of the **LESSOR**. Such installation should be made in such a way as to cause no injury or damage to the Leased Premises, however, in the installation of additional electrical appliances, such as, but not limited to, water coolers, office refrigerators and fans, where extra outlets shall be needed, the **LESSEE** shall first submit to the **LESSOR** for its approval a plan showing such additional installations. Moreover, the **LESSEE** shall employ the services of only licensed electrical engineers previously approved by the **LESSOR** to ensure that any resulting additional load capacity of the Park to minimize fire hazards. The **LESSEE** shall further comply with the requirements of the relevant Fire Department, the Municipal Engineer's Office and such other responsible national or local government authorities.

9.1.3 The **LESSEE** shall make a declaration of the maximum electric load in the Leased Premises and periodically submit, as required by the **LESSOR**, a list of all electrical fixtures, appliances, equipment and such facilities that the **LESSEE** has installed or is using within the Leased Premises. The **LESSEE** shall at all times cooperate with the **LESSOR**'s representative/ representative in the result directly or indirectly therefrom.

9.1.4 **LESSEE** shall not make any alterations, additions or improvements in or upon the Leased Premises without the prior written consent of the **LESSOR**; Provided, however that all such alterations, additions or improvements made by either PARTY in or upon the Leased Premises, except the movable furniture and fixtures installed at the expense of the **LESSEE** and removable without defacing or damaging the Leased Premises, shall become the property of the **LESSOR** and shall remain thereon upon the termination of this Contract without reimbursement. The **LESSOR** reserves the right to refuse any alterations, additions or improvements requested by the **LESSEE**.

9.1.5 Any additional equipment, such as air-conditioning unit, to be installed by the **LESSEE** shall be subject to the **LESSOR**'s prior approval. All permits which may be required for the installation and operation of these fixtures and facilities when so approved by the **LESSOR**, shall be obtained and maintained by the **LESSEE** at its expense. **LESSEE**-installed air-conditioning system should meet the requirement of the area with respect to the cooling capacity or horsepower rating, and can be placed only in a location designated by the **LESSOR**. The **LESSEE** shall at all times keep in good order, condition and repair the electrical and other

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

mechanical equipment within or serving the Leased Premises and to pay for their maintenance and electric consumption. The **LESSEE** shall also be responsible for the payment of all charges, costs, expenses, dues, assessments, levies, taxes or insurance premiums which may be imposed or collected in connection with the installation, operation, repair or maintenance of such additional fixtures and facilities. The **LESSEE** shall comply with all the rules, regulations and requirements imposed by the appropriate government agencies or public utility companies in connection therewith. Further, it is expressly understood that the **LESSOR** shall not under any circumstances be held liable or responsible for any breakdown, failure or non-performance of the air-conditioning system, whether due to low voltage, faulty electric current, or any other cause or reason.

9.1.6 **LESSEE** may request the **LESSOR** for the installation and connection of internet services and CCTV monitors. The charges and usage policy shall be governed by a separate agreement.

9.1.7 No shades, awnings, blinds or window guards shall be installed or used in the Leased Premises without prior written consent of the **LESSOR**.

9.2 Disconnection of Utilities: In the event that the **LESSEE** fails to pay for the charges or fees incurred in connection with the supply, consumption and use of telecommunications, electricity, water and other public services and utilities to the Leased Premises for a period of two (2) consecutive months, the **LESSOR** shall have the right to disconnect or discontinue the supply thereof for such period as it shall determine. This right shall be in addition to its other rights provided for in Article13.2. For this purpose, the procedure for disconnection shall be as follows:

Notice of Disconnection	:	Non-payment of charges for two (2) consecutive months
Disconnection	:	Five (5) days from **LESSEE**'s receipt of the Notice
Reconnection	:	Within five (5) days from full payment of charges

ARTICLE 10 – MANPOWER

10.1 Park Schedule: The **LESSOR** shall provide the **LESSEE** with the Park schedule as basis for the latter's attendants' shift schedule.

10.2 Park-wide Orientation: Prior to the deployment of the **LESSEE**'s attendants and employees, they shall be required to attend the Park-wide Orientation conducted by the **LESSOR**. The **LESSEE**'s attendants and employees shall be governed by the Park's policies and procedures and the corresponding sanctions for deviations and/or violations.

10.3 Deployment supplies: The **LESSEE** shall be charged for their employees' deployment needs such as, but not limited to, identification cards, raincoats, rain boots, umbrella and others.

ARTICLE 11 - LESSEE'S ADDITIONAL COVENANTS

The **LESSEE** agrees that in addition to its other undertakings under this Contract, and unless it has obtained the prior written consent of the **LESSOR** for the performance of an act of deed which is otherwise prohibited under this Contract, the **LESSEE** shall not:

11.1 Sublease or Assignment of Rights: The **LESSEE** shall not assign or transfer its right under this Contract, nor sub-lease all or any part of the Leased Premises or enter into any arrangement whereby the use or possession of any part of the Leased Premises is transferred to any person. No right, title or interest to, in and under this Contract or the Leased Premises shall be deemed conferred or vested in any person other than the **LESSEE**, to the extent specified herein, without the **LESSOR**'s prior written consent.

For purposes of the foregoing, the following circumstances shall likewise be deemed an assignment or transfer of rights necessitating the prior consent of the **LESSOR**:

11.1.1 Transfer, sale, assignment or other disposition by **LESSEE** to a third party of all or substantial part or value of its assets used in connection with its business;

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

11.1.2 If **LESSEE** is a corporation, the sale, transfer, assignment or other disposition of at least twenty five (25%) percent of its capital stock to persons other than the existing shareholders thereof at the time of the execution of this Contract, or any disposition whereby the controlling interest is transferred to a third party.

11.1.3 Any contract or agreement entered into by the **LESSEE** with any third person, association, or corporation in joint venture whereby the said party will be allowed to occupy and transact business in the Leased Premises under any capacity whatsoever.

11.2 Mortgage: The **LESSEE** shall not mortgage, encumber or create any security interest in and to the leasehold rights granted hereunder to the **LESSEE**.

11.3 Notices and Signs: The **LESSEE** shall not affix, inscribe or paint, or cause the affixing, inscribing or painting of, any notice, sign or other advertising media on any part of the Leased Premises, including any sign or media which when illuminated shall be visible from outside the Leased Premises or which, in the opinion of the **LESSOR**, is of a lewd, obscene or otherwise offensive nature. If so allowed by the **LESSOR**, the sign or media shall be of such size and style as the **LESSOR** may determine. Neither shall the **LESSEE** permit or give consent to any person or entity to affix, inscribe or paint any notice, sign or other advertising media on the Leased Premises or on any part of the Park, as if said person or entity uses, holds office or is otherwise established at the Leased Premises or any part thereof. Only the name and nomenclature of the **LESSEE** as set out in this Contract shall be advertised in the directory of **LESSEE**s. The **LESSOR** shall have the right to require the **LESSEE** to remove any sign which the **LESSOR** may consider to be inappropriate. Upon failure of the **LESSEE** to do so, the **LESSOR** shall have the authority, without incurring any liability, to enter the Leased Premises, remove any sign/s it may consider inappropriate, and charge the costs thereof to the **LESSEE**.

11.4 Name of the Park: The **LESSEE** agrees that the **LESSOR**'s name or the name of the Park shall not be used in any confusing, detrimental or misleading manner in connection with the **LESSEE**'s own business or tradename, and upon termination of this Lease, the **LESSEE** shall cease to use the name of the Park or any part thereof in any manner, whether in connection with the **LESSEE**'s own business or trade name or otherwise.

11.5 Intellectual Property Rights: The **LESSEE** shall not produce any promotional or merchandising material bearing Enchanted Kingdom's trademark, trade name, service marks, product names and other intellectual properties without the **LESSOR**'s prior written consent. The use of Enchanted Kingdom's Intellectual Property shall be subject to the requirements and parameters specified in writing by the **LESSOR** and shall be used only for the duration of this Contract. Upon termination of this Contract, the **LESSEE** shall immediately discontinue and abandon the use or Enchanted Kingdom's Intellectual Property for which the **LESSOR**'s prior written consent was granted.

11.6 Repairs, Alterations, Additions or Improvements: The **LESSEE** shall make repairs at its sole expense for the preservation and maintenance of the Leased Premises. The **LESSEE** shall not make any alteration, addition or improvement within the Leased Premises or in any of the Common Areas or effect the installation of any fixture required by the conduct of its business, without the prior written consent of the **LESSOR** and then subject to such terms and conditions as may be imposed by the **LESSOR** as it deems it. All alterations, additions or improvements made by the **LESSEE** as well as any alteration, improvement, addition or installation in or on the Leased Premises shall be done in good workmanlike fashion and at the **LESSEE**'s cost. All building, architectural, engineering, conceptual plans and specifications for any alteration, addition or improvement shall be submitted to the **LESSOR** for its approval at least thirty (30) days prior to the commencement of work on any such alteration, addition or improvement. The **LESSOR** reserves the right to require the **LESSEE** to use the **LESSOR**'s building contractor for any renovation of the Leased Premises, when in the **LESSOR**'s best judgement, the proposed renovation may adversely affect any of the warranties or guarantees given by any of the contractors of the building. The **LESSEE** shall give all the notices required and shall comply with all ordinances, rules and regulations issued by governmental agencies and public utility companies having jurisdiction over the same. For purpose hereof, the **LESSEE** shall submit to the **LESSOR** the construction bond as required by Article 4.4 prior to the start of any construction or renovation of the Leased Premises.

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

All such alterations, additions or improvements made by the **LESSEE**, as well as any alteration, improvement or installation placed in or on the Leased Premises by the **LESSOR**, except movable furniture and fixtures placed in the Leased Premises at the expense of the **LESSEE** and removable without defacing or injuring any ceiling, floor, wall or any portion of the Building or the Leased Premises, shall become the property of the **LESSOR** at the expiry or termination of this lease, and shall remain upon and be surrendered with the Leased Premises as part thereof without compensation for their value to the **LESSEE**.

11.7 Drilling or Defacing: The **LESSEE** shall not make, permit or suffer any act, installation, alteration or addition to be made or done in or to the Common Areas, Leased Premises or any part of the Building which may cause damage thereof, including without limitation, any cutting, marking, defacing or drilling into or of any part of the Leased Premises or Common Areas.

11.8 Load Limitations: The **LESSEE** shall not install or place any load, apparatus, equipment, article or thing in any part of the Leased Premises, the weight or location of which in the Leased Premises will violate the maximum load limitation for the Leased Premises as determined by the **LESSOR** for the floor of the Building where the Leased Premises is located. For this purpose, the **LESSEE** shall obtain the prior written approval of the **LESSOR** for the entry and/or removal of any load, apparatus, equipment, article or thing into and from the Leased Premises, The **LESSEE** shall also comply with the requirements imposed by the **LESSOR** for keeping such equipment, load or apparatus within the Leased Premises, including the use of supports of such dimension and material to distribute the weight of such equipment load or apparatus as the **LESSOR** may deem necessary. Neither shall the **LESSEE** install, without the prior written approval of the **LESSOR**, any air-conditioning equipment in the Leased Premises (which shall use only the air-conditioning equipment prescribed by the **LESSOR**) nor any other plant, equipment, apparatus or machinery which requires additional wiring or which consumes electricity not metered through the electric meter from which the **LESSEE**'s consumption of electricity is calculated. The **LESSEE** shall not permit, suffer or cause any act to be done whereby the maximum allowable voltage capacity of the Leased Premises shall be exceeded.

11.9 Loading and Unloading of Goods: The **LESSEE** shall load and unload cargoes, goods, materials or things only during such hours and through such entrances and locations as shall be determined by the **LESSOR** from time to time.

11.10 Insurance: The **LESSEE** shall, at its sole expense and during the term of this Contract, keep the Leased Premises and all merchandise, improvements and other properties thereon insured against destruction or damage by fire and extended coverage risks, including public liability, with such insurance company or companies acceptable to the **LESSOR**, in an amount equal to the maximum insurable value thereof, and shall promptly pay the premiums thereon on the dates that the same are payable and due. In case of loss or damage on the Leased Premises covered by insurance, the **LESSEE** shall be responsible for the deductible amount, and all insurance proceeds for the Lease Premises and its improvements shall be payable to the **LESSOR**, which will then ensure that the proceeds will be used for the repair of the leased premises and improvements thereon. For this purpose, the insurance policy shall contain a Loss Payable Clause in favor of the **LESSOR**. The **LESSEE** shall furnish the **LESSOR** copies of the insurance policies and every renewal thereof.

If the **LESSOR** does not receive a copy of the **LESSEE**'s insurance policy or renewal within seven (7) days of its expiration and **LESSEE** neglects to insure or keep insured the Leased Premises, the **LESSOR**, may without prior notice to the LESSEE, renew or procure insurance thereon. The **LESSOR** shall give immediate notice to the **LESSEE** that the **LESSOR** has renewed or procured the insurance and shall state the amount of the premiums the **LESSOR** has paid thereof. The **LESSEE** shall then reimburse to the **LESSOR** all such amounts paid by the **LESSOR** immediately after receipt of said notice. Failure of the **LESSEE** to procure the required insurance coverage or reimburse all such amount paid by the **LESSOR** shall entitle the **LESSOR** to all the rights and remedies provided under this Contract.

In addition, the **LESSEE** shall, prior to the commencement of any construction or renovation of the Leased Premises, secure a contractor's all risk insurance against bodily injury and property damage to third parties in an amount not less than Philippine Peso: Five Hundred Thousand (Php 500,000.00) or Twenty Percent (20%) of the total projected construction cost, whichever is higher. A copy of said insurance policy shall be delivered by the **LESSEE** to the **LESSOR**.

ENCHANTED KINGDOM SANTA ROSA CITY LAGUNA

11.11 Nuisances: The **LESSEE** shall not permit or suffer to be permitted any music or noise to emanate from the Leased Premises which in the reasonable opinion of the **LESSOR** may constitute a nuisance or annoyance or give cause reasonable complaint from the **LESSOR**, other **LESSEE**s or guests. Neither shall it permit any odor or noxious smell which is, in the sole opinion of the **LESSOR**, offensive or unusual, to emanate from the Leased Premises, nor keep or suffer to be kept any animals or pets inside the Leased Premises.

11.12 Protection against Pests: The **LESSEE** shall take all steps and precautions at its own cost to prevent the Leased Premises from becoming infested with termites, rats, mice cockroaches and other pests. For this purpose, it agrees to utilize the services of the pest control company recommended by the **LESSOR** to provide pest control services for the Leased Premises and on schedules indicated in the **LESSOR**'s House Rules.

11.13 Compliance with Rules: The **LESSEE** shall obey and comply with the **LESSOR**'s house rules and with such other rules and regulations as may from time to time be imposed, adopted, introduced or amended by the **LESSOR**.

11.14 Compliance with Health and Safety Protocols: **LESSEE** and its employees shall comply with all **LESSOR's** health and safety protocols, policies and rules, including those related to the prevention of Covid-19 infection.

11.15 Inspection and Permit to Entry: The **LESSEE** shall permit the **LESSOR** and their authorized representatives at reasonable times to enter the Leased Premises for the purpose of repair and maintenance of utilities or structural elements, inspecting the condition of the Leased Premises, or for determining the **LESSEE**'s compliance with this Contract.

11.16 Strikes and Lock-outs: In the event of a strike, lock-out, picket or any other labor dispute in the Leased Premises as a result of which the business operations of the Park and/or its other tenants are impaired or adversely affected, the **LESSOR** shall have the option to terminate or suspend this Contract in order to protect the business operations of the Park and all its other tenants.

11.17 Return of Leased Premises: The **LESSEE** agrees to return and surrender the Leased Premises at the expiration of the term of this Contract in the same condition as it was found at the commencement of the lease, reasonable wear and tear excepted, without any delay whatsoever, devoid of all occupants, furniture, articles of any kind, other than the alteration, additions or improvements which pertain to the **LESSOR** in accordance with Article 11.6. The **LESSEE** shall repair any damage caused to the Leased Premises which cannot be accounted for by reasonable wear and tear and restore the Leased Premises to the condition it was found at the commencement of the Lease to the satisfaction of the **LESSOR**. All keys giving access to all parts of the Leased Premises and/or Common Areas (as applicable) shall be returned to the **LESSOR**, and all expenses incurred in removing from the Leased Premises the names, posters, signboards, decorations, or advertising materials relating to the **LESSEE**, including any damage caused by such removal, shall be for the account of the **LESSEE**.

11.18 Hold-over: If the **LESSEE** fails to return the Leased Premises to the **LESSOR** at the end of the term of this Lease, the **LESSEE** shall pay the **LESSOR**, as damages, a sum equal to twice the lease to be paid by the **LESSEE** to the **LESSOR** for the period during which the **LESSEE** retains possession of the Leased Premises. The exercise by the **LESSOR** of its rights under this Article shall not be interpreted as a grant of permission to the **LESSEE** to continue in possession of the Leased Premises beyond the term of the Lease and the damages due to the **LESSOR** hereunder shall be in addition to the damages which may become due to the **LESSOR** under Article 13.2.

If the Leased Premises are not surrendered at the expiration of the term of the Lease, the **LESSEE** shall be responsible to the **LESSOR** for all damages which the latter may suffer by reason thereof and will indemnify the **LESSOR** against any and all claims made by succeeding **LESSEE**, resulting from the delay in delivering possession of the Leased Premises to such succeeding **LESSEE**, to the extent that such delay is occasioned by the failure of the **LESSEE** to surrender the premises on time. The **LESSOR** shall also be entitled to exercise the remedies on Article 13.2 hereof.

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

ARTICLE 12 – INDEMNITIES

12.1 Limitations on Liability of **LESSOR**: Save by its gross negligence or willful misconduct, the **LESSOR** shall not be liable or responsible in any circumstance, whether tortuous or otherwise, for any damage or disturbance suffered (directly or indirectly) by the **LESSEE** (whether personally or in respect of the Leased Premises or any of its contents therein) or by any of its employees, clients, customers or any other person whosoever. Without limiting the generality of the foregoing, the **LESSOR** shall not be liable in respect of any loss, damage or injury sustained by the **LESSEE** or any such other person or any of their properties, caused by or through any accident, event or in any way owing to: (i) the failure, quality, inadequacy, fluctuation, interruption, malfunction, explosion or suspension of electricity, water, telephone, emergency power or any other utility services intended for the Leased Premises; (ii) any seepage, overflow, or leakage of water from any pipe, drain, or influx of rain water into the Leased Premises; (iii) any activity of rats or other pests; (iv) force majeure; (v) any escape of fumes or other substances from anywhere within the Park and of electric current from electric wiring situated upon or connected to the Leased Premises; (vi) any act, neglect or default of the **LESSEE** or any other **LESSEE**s in the Park, or any of their respective employees, clients, guests or customers.

12.2 Release and Indemnification –The **LESSEE** and their employees agree that they are responsible for their safety and their actions while using the facilities at Enchanted Kingdom. The **LESSEE** and their employees agree to comply with all the Park's health and safety policies and rules, including but not limited to all protocols, guidelines, signages, and instructions to prevent contracting Covid-19. With full awareness and appreciation of the risks involved, the **LESSEE** and their employees hereby forever release, waive, discharge, and covenant to release Enchanted Kingdom and its management from any and all liability, claims, demands, actions, and causes of action whatsoever, directly or indirectly arising out of or related to any loss, damage, or injury, including death, that may be sustained related to Covid-19 while in, on, or around Enchanted Kingdom and/or while using any facilities, tools, equipment, or materials.

The **LESSEE** shall indemnify and keep the **LESSOR** fully indemnified against all claims, demands, actions, and proceedings whatsoever made against the **LESSOR** by any person whomsoever arising as a result of or in connection with any loss, damage or injury which the **LESSOR** shall not be responsible under Article 12.1 and against all costs incurred by the **LESSOR** in respect of such claims, actions or demands.

12.3 Non-abatement of Obligations: In no event shall the payment of any amount due hereunder whether as lease, Common Area charges or utility charges abate or cease to be payable on account of the occurrence of any of the causes specified above, except to the extent permitted under Article 12.1.

ARTICLE 13 – TERMINATION AND ITS CONSEQUENCES

13.1 Events Giving Rise to Default and Termination: The **LESSOR** shall have the right to cancel or terminate this Contract upon the occurrence of any of the following events:

13.1.1 The term or renewal of this lease shall have expired pursuant to Article 2.1, or the **LESSEE** shall have failed to return and surrender the Leased Premises in accordance with Article 11.16;

13.1.2 The Leased Premises shall be closed, deserted or unoccupied for a continuous period of fifteen (15) calendar days;

13.1.3 The **LESSEE** shall fail to pay the lease or any other amount due hereunder on the date specified herein for its payment;

13.1.4 The Leased Premises is used for purposes other than as specified in Annex B without the prior consent of the **LESSOR**.

13.1.5 The **LESSEE** fails to observe or perform any of the covenants provided hereunder, including but without limitation, the failure by the **LESSEE** to comply with the requirements of Article 7, provided that with respect to the **LESSEE**'s obligation to submit a monthly Gross Sales Report under Article 7.6, the **LESSEE**'s failure to submit a monthly Gross Sales Report on due date at least

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

three (3) times during any lease year shall entitle the **LESSOR** to terminate and cancel this Contract;

13.1.6 Any of the **LESSEE**'s representations and warranties as specified hereunder shall prove false in any material respect when made;

13.1.7 The **LESSEE** (if the latter is a natural person) shall have died or the corporate existence of the **LESSEE** (when organized as a corporation or partnership) has ceased;

13.1.8 The **LESSEE** shall become insolvent or be unable to pay its debts when due or shall commit or permit any act of bankruptcy;

13.1.9 The **LESSEE** shall have understated its Gross Sales for maximum three (3) times in any one (1) lease year;

13.1.10 The occurrence of any event which entitles the **LESSOR** to exercise its right to cancel or terminate this Lease pursuant to other provisions of this Contract.

13.1.11 Should the **LESSEE** wish to pre-terminate this Contract of Lease for whatever reason, the **LESSEE** shall notify the **LESSOR** in writing at least ninety (90) calendar days in advance of the pre-termination date. In the event of such pre-termination of this Agreement and upon written approval by the **LESSOR**, the **LESSEE** will then no longer be liable to pay lease and/or other charges for the unexpired portion of the lease. However, the provisions of paragraph 4.4 of this Article shall apply. Likewise, the **LESSEE** shall surrender peaceful possession of the Leased Property to the **LESSOR**. Should the pre-termination be caused by events of default stated in paragraph 13.1, the provisions of paragraph 13.2 shall apply.

13.2 Consequences of Default: Upon the occurrence of any of the foregoing events, the **LESSOR** shall be entitled to exercise any of the following remedies, alternatively or cumulatively, in conjunction with or separately, at its discretion, from any other right or remedy granted hereunder and under the law:

13.2.1 The **LESSEE** hereby appoints the **LESSOR** as its attorney-in-fact with the following powers and functions, exercisable upon the occurrence of any of the events specified in Article 13.1: shall have the right to (i) open, enter, padlock, secure, enclose, or fence in the Leased Premises, and/or discontinue the supply of public utilities and services to the Leased Premises, or otherwise take the full and complete physical possession and control of the Leased Premises; (ii) assume ownership and take full control and possession of all alterations, additions, improvements or installations placed in or on the Leased Premises which cannot be removed without defacing or injuring any ceiling, floor, wall or any portion of the Leased Premises; (iii) take inventory of the equipment, furniture, articles or merchandise found or located in the Leased Premises which may be removed therefrom without defacing or injuring any ceiling, floor, wall or any portion of the Leased Premises, place any of the same in storage and charge the **LESSEE** the corresponding fees therefor; (iv) in case the **LESSEE** fails to claim said equipment, furniture, articles or merchandise from storage and liquidate any liability to the **LESSOR** within thirty (30) days from the date the **LESSOR** takes possession of the Leased Premises or of the **LESSEE**'s personal properties, to dispose of said properties in a public sale and apply the proceeds thereof to the payment of any liability and/or indebtedness due to the **LESSOR**, including reasonable expenses incurred by the **LESSOR** in connection with such sale, without prejudice to the right of the **LESSOR** collect the deficiency, if any. The appointment of the **LESSOR** as attorney-in-fact is considered coupled with interest and hence is irrevocable.

13.2.2 The **LESSOR** shall be entitled to collect from the **LESSEE**, and the **LESSEE** shall continue to be liable for, the lease of the unexpired period of lease term and the penalty and interest charges due thereon (as applicable). The entire security constituted under Article 4.4 shall be forfeited in favor of the **LESSOR**. The **LESSEE** shall continue to be liable for all amounts which shall be due from it as

ENCHANTED KINGDOM, INC. SANTA ROSA, CITY LAGUNA

provided hereunder. All these amounts shall be due to the **LESSOR** in addition to whatever damages, whether actual or consequential, the **LESSOR** may have suffered or incurred from the termination of this Contract. In no case shall any of the amount due hereunder from the **LESSEE** be applied against the security deposit provided by the **LESSEE** under Article 4.4, it being understood that the entire amount thereof shall accrue by virtue of forfeiture in favor of the **LESSOR**.

13.2.3 Should the **LESSOR** be compelled to seek judicial relief against the **LESSEE**, the latter shall, in addition to the damages mentioned above, pay an amount equivalent to 20% of the amount claimed in the complaint, as attorney's fees and the cost of litigation and other expenses which the law may entitle the **LESSOR** to recover from the **LESSEE**.

ARTICLE 14 – GENERAL PROVISIONS

14.1 Agency, Partnership and Joint Venture Excluded: Nothing in this Contract shall be construed as establishing or implying any partnership, joint venture or employer-employee relationship between the Parties.

14.2 Gift-giving Prohibition: The **LESSOR** aims to build and maintain solid relationships with its **LESSEE**s based on integrity in words and actions, and never rely on personal inducements, benefits, gifts or favors. The acceptance of any gift (of substantial value), monies, rebates, loans, commissions, services, favors, tickets to sporting events or remuneration of any kind by any of the **LESSOR**'s employees, employee family members or any third party on behalf of the **LESSOR** is prohibited. Gifts are deemed unnecessary to enhance mutually profitable relationships with the **LESSOR**. This article excludes solicitations for **LESSOR**'s official functions or events.

14.3 Expropriation: In the event that expropriation proceedings are instituted on the Leased Premises or the Park during the Term of this Contract by any instrumentality of the Government or by any other entity with authority to exercise such power, and as a result thereof, the Leased Premises may no longer be used for the purpose set forth herein, either Party may rescind this Contract upon giving the other Party thirty (30) days prior written notice. In case of such expropriation, **LESSEE** hereby unconditionally relieves and releases the **LESSOR** from any and all liabilities under this Contract, without prejudice to whatever recourse the **LESSEE** may have against the expropriating entity on account of damage done or caused to the **LESSEE** or its properties.

14.4 Confidential Information: The **LESSEE** agrees that all data and information about the **LESSOR**'s business, operations, plans, finances, equipment, processes, technologies, personnel, customers, vendors, methods of operation, sample images disclosed to, acquired by or developed by the **LESSOR** that is not generally known to the public without breach of this Contract, and that, under all circumstances, ought reasonably to be treated as confidential (hereinafter collectively referred to as Confidential Information) shall remain the exclusive property of the **LESSOR**. The **LESSEE** shall during the term of this Contract and thereafter in perpetuity maintain as confidential and not disclose to third parties or otherwise use, and will enjoin its employees, agents, or subcontractors (as applicable) from using such information, except as duly authorized in the conduct of the **LESSEE**'s' business or as otherwise authorized in advance in writing signed by the authorized representative by the **LESSOR**. Upon the termination of this Contract, the **LESSEE** shall, without need of demand or request, return any materials, data, samples or documents provided by the **LESSOR**, if any.

The **LESSEE**'s obligation under this article shall not apply if the disclosure of **LESSOR** information is required by applicable law, legal process, or professional obligation. The **LESSEE** shall promptly inform the **LESSOR** of any compelled disclosure, including without limitation the receipt of any subpoena requiring the submission of the **LESSOR**'s information/documents in the **LESSEE**'s possession or custody, in connection with any legal proceedings in the Courts of Law or any other government agency. The **LESSEE** shall cooperate with the **LESSOR** in contesting the compelled disclosure and shall disclose only to the extent legally compelled.

14.5 Data Privacy. Without limiting the generality of Section 14.4 and the performance of their obligations under this Agreement, the Parties shall ensure the privacy and security of any and all confidential, privileged, personal and/or sensitive personal information that the Parties (and their officers, employees, or agents) may have access to; and shall store, use, process and dispose the said confidential, privileged, personal and/or sensitive personal information in accordance with

ENCHANTED KINGDOM SANTA ROSA CITY LAGUNA

Republic Act 10173 or the "Data Privacy Act of 2012," its Implementing Rules and Regulations (IRR) and applicable National Privacy Commission (NPC) issuances. Any violation of this clause and any of the provisions of the said law and issuances by the aforementioned persons shall be subject to the corresponding sanctions, penalties or fines under the said law without prejudice to any other applicable civil and/or criminal liability. This clause shall survive the termination or expiration of this Agreement. Nothing in Sections 14.4 and 14.10 shall be construed to diminish the Parties' rights and duties under the Data Privacy Act of 2012.

14.6 Non-Waiver: The failure of any Party to insist upon a strict performance of any of the terms, conditions and covenants hereof shall not be deemed a relinquishment or waiver of such terms, conditions, or covenants, nor shall it be construed as a condonation of any subsequent breach or default of the terms, conditions and covenants hereof, which terms, conditions and covenants shall continue to be in full force and effect. The subsequent acceptance of lease by the **LESSOR** shall not be deemed to be a waiver of any of the prior breach by the **LESSEE**, regardless of **LESSOR**'s knowledge of such prior breach at the time of acceptance of such lease. No waiver by the **LESSOR** of any of its rights under this Contract shall be deemed to have been made unless expressed in writing and signed by the **LESSOR**.

14.7 Notice: Where demand or notice is required to be given under this Contract, notice sent to the **LESSEE** at the Lease Premises or at the address specified above by registered mail or personal delivery, shall be sufficient compliance with the requirement of notice.

14.8 Annexes: All the Annexes of this Contract constitute integral parts hereof. In case a provision, whether express or implied, under Schedule B conflicts or is at variance with any provision in the main body of this Agreement, the provision in the main body shall prevail.

14.9 Entire Agreement: This Contract constitutes the complete understanding between the Parties with respect to the subject matter hereof and superseded any prior expression of intent, representation or warranty with respect to this transaction. This Contract may be amended but only with an instrument in writing signed by the Parties.

14.10 Severability: If any one or more of the provisions of this Contract is declared invalid or unenforceable in any respect under the applicable law, the validity, legality or enforceability of the remaining provisions contained herein shall not in any way be affected or impaired.

14.11 Governing Law and Venue of Action: This Contract shall be construed, and the legal relations between the Parties determined, in accordance with the laws of the Republic of the Philippines. The Parties hereby irrevocably consent to the jurisdiction of the courts located in Santa Rosa City, Laguna, Philippines, in any action arising out of this Contract, and waive any other venue to which either Party might be entitled by domicile or otherwise.

IN WITNESS WHEREOF, the **LESSEE** and the **LESSOR** have caused their presents to be signed on _____ at _____.

ENCHANTED KINGDOM, INC.

CYNTHIA R. MAMON, Ph.D.
Chief Operating Officer

MARY GRACE FOODS, INC.

ADRIAN P. DIMACALI
Director

MELISSA Y. MONICAYO
Chief Finance Officer

SIGNED IN THE PRESENCE OF:

ANNA MARIA ANGELA MAMON-ABAN
Head of Business Development & Digital Transformation

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES}
MAKATI CITY } S.S.

BEFORE ME, a Notary Public for and in MAKATI CITY on this _____th day of AUG 0 6 2024, _____ personally, appeared:

NAME	Gov't Issued ID's (Passport / PRC ID / Driver's License, etc.)	Date & Place Issued
CYNTHIA R. MAMON	Unified Multi-Purpose ID: CRN 0111-2780592-5	
MELISSA Y. MONICAYO	Passport: P6911235A	Valid until: April 24, 2028

known to me and to me known to be the same persons who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed as well as of the corporation they represent.

IN WITNESS WHEREOF, I have hereunto set my hand and seal this ___ day of AUG 0 6 2024 at MAKATI CITY.

NOTARY PUBLIC

NIKKO JAN NEIL B. TALUBAN
Notary Public for Makati City
Valid until December 31, 2024
Appointment No. M-476 (2023-2024)
Attorney's Roll No. 78709
Unit 804, 139 Corporate Center, Valero Street
Salcedo Village, Makati City 1227, Philippines
MCLE Comp. [ADMITTED TO THE BAR 2022]
IBP No. 379863; 11/29/2023, Abra
PTR No. 10075038; 01/02/2024; Makati City

Doc. No. 86;
Page No. 19;
Book No. II;
Series of 2024

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES}
TAGUIG CITY } S.S.

BEFORE ME, a Notary Public for and in TAGUIG CITY on this _____th day of SEP 04 2024, _____ personally, appeared:

NAME	Gov't Issued ID's (Passport / PRC ID / Driver's License, etc.)	Date & Place Issued
ADRIAN P. DIMACALI	Passport No. P7871334A	22 May 2018 to 21 May 2028 DFA Manila

known to me and to me known to be the same person who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed as well as of the corporation they represent.

IN WITNESS WHEREOF, I have hereunto set my hand and seal this SEP 04 2024 day of _____ at TAGUIG CITY

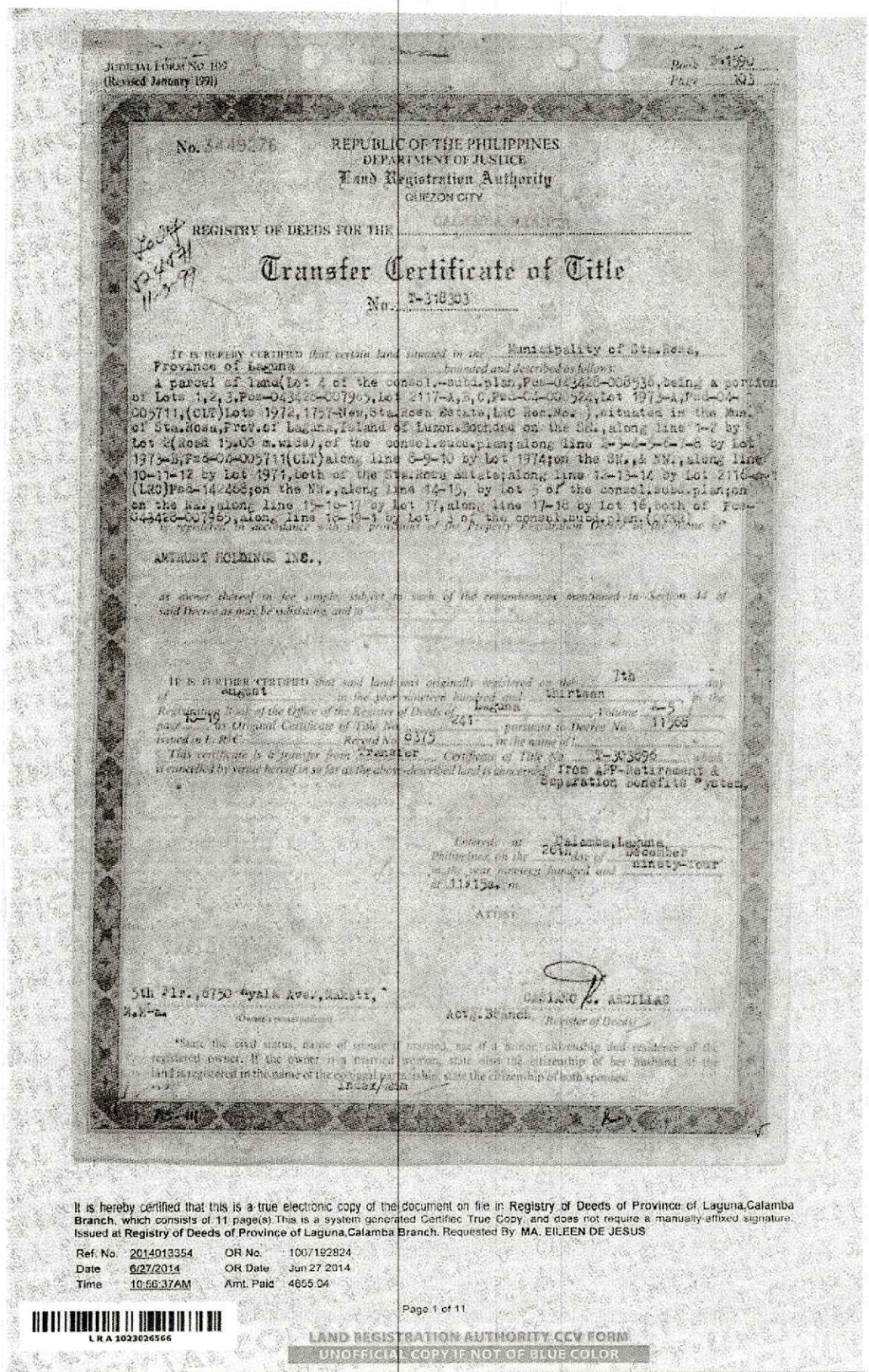
NOTARY PUBLIC

Doc. No. 145;
Page No. 33;
Book No. XLIII;
Series of 2024

ATTY. IRISH S. PRECION
Notary Public for Taguig City
Appointment No. 23 (2023-2024)
Roll No. 69281/05.31.17 / IBP No. 257478/12.29.23
PTR No. A-6123618/01.02.24/Taguig City
MCLE Compliance No. VII-0020815 valid until 04-14-25
Ground Floor FTI Old Admin. Bldg. FTI Complex, Taguig City
precionirishs@gmail.com / 09988534549

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

ANNEX A-1 – TRANSFER CERTIFICATE OF TITLE ("OCT/TCT") NO. T-318303



JUDICIAL FORM NO. 109
(Revised January 1991)

No. [illegible]

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF JUSTICE
Land Registration Authority
QUEZON CITY

REGISTRY OF DEEDS FOR THE [illegible]

Transfer Certificate of Title

No. T-318303

It is hereby certified that certain land situated in the Municipality of Sta.Rosa, Province of Laguna bounded and described as follows:

A parcel of land(Lot 4 of the consol.-subd.plan,Pcs-04-3420-008536,being a portion of Lots 1,2,3,Pcs-04-3420-007969,Lot 2117-A,B,C,Pcs-04-000924,Lot 1973-A,Pcs-04-009711,(CLT)Lots 1972,1757-New,Sta.Rosa Estate,LRC Rec.No.),situated in the Mun. of Sta.Rosa,Prov.of Laguna,Island of Luzon.Bounded on the SW.,along line 1-2 by Lot 2(Road 15.00 m.wide),of the consol.subd.plan;along line 2-3-4-5-6-7-8 by Lot 1973-B,Pcs-04-009711(CLT)along line 8-9-10 by Lot 1974;on the SW.,& NW.,along line 10-11-12 by Lot 1971,both of the Sta.Rosa Estate;along line 12-13-14 by Lot 2116-New (LRC)Pcs-14-2408;on the NW.,along line 14-15, by Lot 3 of the consol.subd.plan;on on the NW.,along line 15-16-17 by Lot 17,along line 17-18 by Lot 16,both of Pcs-04-3420-007969,along line 18-19-1 by Lot 3 of the consol.subd.plan.(Vac.)

ANTHOST HOLDINGS INC.,

as owner thereof in fee simple, subject to such of the encumbrances mentioned in Section 44 of said Decree as may be subsisting and to

It is further certified that said land was originally registered on the 7th day of August in the year nineteen hundred and thirteen in the Registration Book of the Office of the Register of Deeds of Laguna, Volume C-3 page 10-16 as Original Certificate of Title No. 241, pursuant to Decree No. 11768 issued in L.R.C. Record No. 8315, in the name of [illegible]

This certificate is a transfer from Transfer Certificate of Title No. T-303098 as contained by virtue hereof in so far as the above-described land is concerned. from A/P-Retirement & Separation benefits System,

Entered at Calamba,Laguna Philippines on the 26th day of December in the year nineteen hundred and ninety-four at 11:15a.m.

Attest

5th Flr.,6750 Ayala Ave.,Makati,
Address

ORLANDO P. ARCILLAS
Act'g.Branch Register of Deeds

*State the civil status, name of spouse if married, age if a minor, citizenship and residence of the registered owner. If the owner is a married person, state also the citizenship of her husband if the land is registered in the name of the conjugal partnership; state the citizenship of both spouses.

Index/mlm

It is hereby certified that this is a true electronic copy of the document on file in Registry of Deeds of Province of Laguna,Calamba Branch, which consists of 11 page(s).This is a system generated Certified True Copy, and does not require a manually-affixed signature. Issued at Registry of Deeds of Province of Laguna,Calamba Branch. Requested By: MA. EILEEN DE JESUS

Ref. No. 2014013354 OR No. 1007192824
Date 6/27/2014 OR Date Jun 27 2014
Time 10:56:37AM Amt. Paid 4655.04

Page 1 of 11

LRA 1023026566

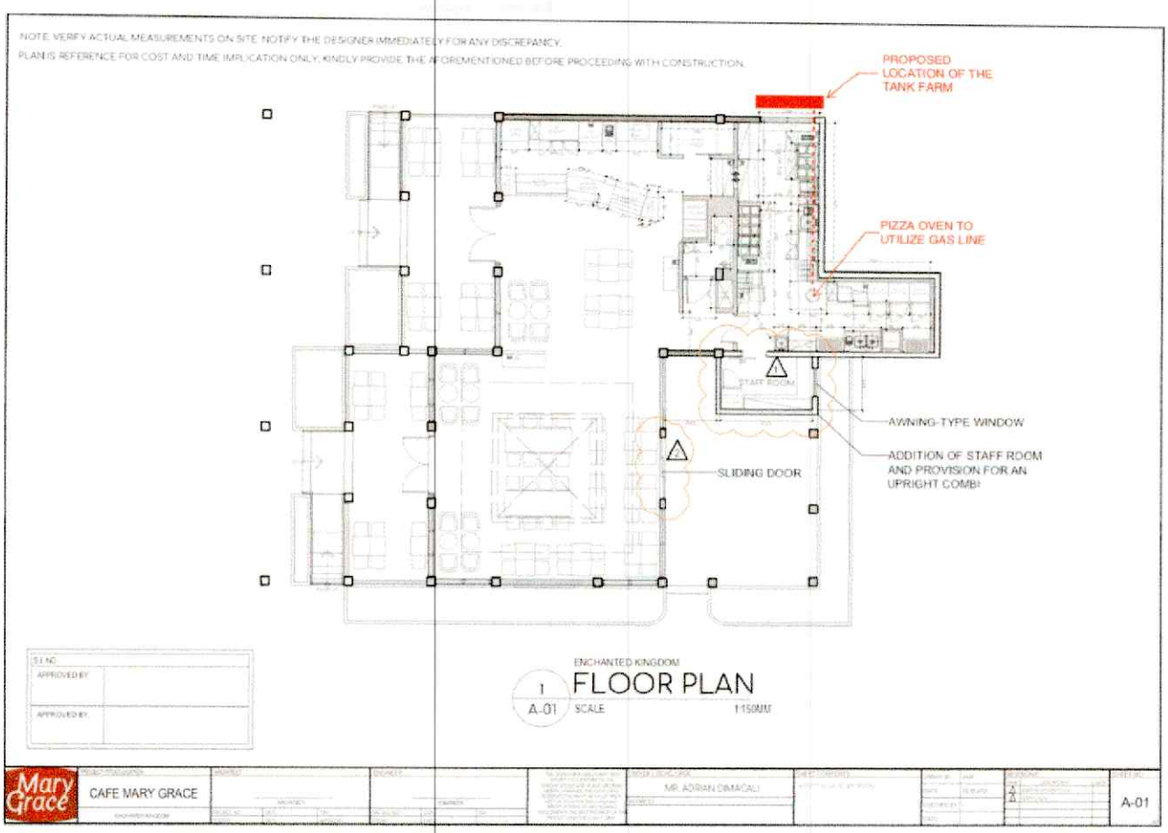
LAND REGISTRATION AUTHORITY CCV FORM
UNOFFICIAL COPY IF NOT OF BLUE COLOR

ENCHANTED KINGDOM, INC.
SANTA ROSA CITY LAGUNA

ANNEX A-2 – LOCATION PLAN OF LEASED PREMISES

Commercial Unit identified as: **MARY GRACE**
Location: **Unit 2 -Portico at Enchanted Kingdom**
Total Floor Area: **256.07 sq m**

Unit drawing/location/technical plan



ENCHANTED KINGDOM, INC. SANTA ROSA CITY, LAGUNA

ANNEX B – LEASE TERMS, LEASE RATES, AND OTHER AMOUNTS

LEASE TERMS

NAME OF OUTLET (Leased Premises)	:	**MARY GRACE** Retail, Dining and Entertainment Portico
SPECIFIC USE/S	:	Food Outlet
SIZE/AREA	:	256.07 square meters
LEASE PERIOD	:	Five (5) years
DELIVERY DATE OF LEASED PREMISES	:	As will be agreed upon
DATE OF AGREED OPENING	:	As will be agreed upon
RENT CHARGES COMMENCEMENT	:	Sixty (60) days after outlet turn over OR First Day of Operations, whichever comes first

LEASE RATES PER MONTH

LEASED PREMISES

LEASE RATE	:	P800.00/sqm. or Five (5%) Percent of Gross Sales, whichever is higher, exclusive of VAT
COMMON AREA USE	:	P150/sqm., VAT-inclusive
STOCKROOM/USE OF WAREHOUSE	:	P250/sqm., VAT-inclusive
UTILITIES	:	Based on actual consumption, exclusive of VAT

OTHER AMOUNTS

SECURITY DEPOSIT	:	P614,568.00
ADVANCE LEASE	:	P204,856.00, VAT-inclusive, applicable on the First Month of the Term
CASH CONSTRUCTION BOND	:	P300,000.00, to be refunded, interest-free, within seven (7) working days after the First Day of operations

ESCALATION RATE

ANNUAL ESCALATION RATE	:	5% starting on the Third (3rd) Year

PAYMENT DATES

LEASE AND OTHER FEES	:	Every 10th day of the following month
SECURITY DEPOSIT	:	On the 10th day following the execution of this Agreement
ADVANCE LEASE	:	On the 10th day following the execution of this Agreement

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA

PENALTY CHARGE

If **LESSEE** fails to open or close the Leased Premises according to required operating Hours of the Park	:	P500/hour or computed average hourly sales, whichever is higher
If **LESSEE** suspends or closes the Leased Premises without prior written consent of the **LESSOR** or the **LESSOR** caused the closing of the Leased Premises due to any violation by the **LESSEE** under this Contract	:	P4,500/day or P500/hour, whichever is higher
For purposes of the above, a fraction of an hour shall merit a full hour penalty.		

WITHHOLDING TAXES

All VATable amounts/charges are subject to applicable withholding taxes.

ENCHANTED KINGDOM, INC. SANTA ROSA CITY, LAGUNA

ANNEX C – LESSEE'S LIST OF PRODUCTS AND RETAIL PRICES

All Day Breakfast	
Menu	**Price**
Sirloin beef Tapa	₱552
Toasted Vigan Longganisa	₱527
Daing Na Bangus	₱512
Chicken Inasal Fillet	₱433
Pork Tocino	₱433
Eggs Benedict	₱433
Eggs Royale	₱507
Brioche French Toast	₱412
**Eggs: Choose between scrambled or sunny side-up*	
**Rice: Choose between Rosemary Fried Rice or Garlic Fried Rice*	
**Upgrade Eggs to Omelette + P100, Choose between Ham & Cheese or Mushroom & Cheese*	
Starters	
Menu	**Price**
Crispy Cassava Chips with Onion Dip	₱287
Cheddar Cheese with Tomatoes & Capers	₱236
Mushroom Pate with Batard Bread	₱259
Grilled Kesong Puti with Batard Bread	₱238
Soups	
Menu	**Price**
Seafood Chowder	₱258
Summer Squash	₱228
Wild Mushroom	₱228
Salads	
Menu	**Price**
Mary Grace Ceasar Salad	₱460
Fried Kesong Puti & Calamansi Vinaigrette	₱407
Local Greens with Chili Daing Dressing & Crunchy Garlic	₱292
Prosciutto with Almonds, Cranberries & Balsamic Vinaigrette	₱370
Prawn Salad with Mango Papaya Vinaigrette	₱486
Grilled Chicken & Oranges with Black Olive Dressing	₱418
Pastas	
Menu	**Price**
Olive oil-based	
Spicy Lemon Scampi	₱503
Spanish Sardines & Olives	₱427
Chorizo & Olives	₱426
Seafood Pasta	₱475
Vongole	₱459
Grilled Chicken Couscous	₱502
Pastas	
Menu	**Price**
Cream-based	
Mary Grace Mushroom Cream	₱498
Classic Carbonara	₱433
Dory & Saffron Cream	₱430
Smoked Salmon & Cream	₱454

Pastas	
Menu	**Price**
Tomato-based	
Pasta Amatriciana with Italian Meatballs	₱433
Fresh Tomato & Herb	₱423
Pastas	
Menu	**Price**
Vigan Longganisa and Kesong Puti	₱407
Fill Beef & Tomato	₱403
Chocken Inasal	₱397
Pan-Seared Shrimp	₱418
Fish & Bell Pepper	₱351
Vegetables on Focaccia	₱345
Perfect Plates	
Menu	**Price**
Fresh Tomato & Herb Plate	₱578
Chorizo Plate	₱558
Dory & Saffron Cream Plate	₱565
Neopolitan Pizza	
Menu	**Price**
Prosciutto & Arugula	₱625
Mushroom & Garlic	₱628
Margherita	₱607
Chorizo & Basil	₱625
Seafood Blanca	₱628
Classic Cheese	₱617
Italian Meatballs	₱605
Seafood & Basil	₱628
Our Signatures	
Menu	**Price**
Mary Grace Ensaymada	₱145
Mary Grace Cheese Roll	₱89
Ensaymada with a Twist	
Laguna Cheese	₱238
Three Cheese	₱238
Banana Cheese	₱199
Cinnamon Apple	₱194
Caramel & Toasted Almonds	₱194
Our Signatures	
Menu	**Price**
Mary Grace Hot Chocolates	₱207
Traditional Tsokolate	₱178
Valencia Hot Chocolate	₱178
Mint Hot Chocolate	₱178
Tsoknut Hot Chocolate	₱167
Spicy Maxicaria Hot Chocolate	₱167
White Hot Chocolate	₱178
Mary Grace Cold Hot Chocolate	₱218

Fresh Fruit Shakes	
Menu	**Price**
Strawberry	₱228
Mango	₱228
Banana	₱207
Homemade Iced Teas	
Menu	**Price**
Glass (250ml)	₱140
Pitcher (750ml)	₱390
Flavors:	
Peach, Apple & Cinnamon	
Peppermint & Apple	
Wild Raspberry	
Sangria (Non-Alcoholic)	
Premium Coffes & Teas	
Menu	**Price**
Espresso	₱138
Americano (Hot or Iced)	₱148
Iced Americano (Almond or Vanilla Cream)	₱158
Cappuccino:	
Hot or Iced	₱158
Valencia	₱178
Muscovado	₱168
Muscovado or Chocolate	₱207
Latte:	
Hot or Iced	₱168
Caramel	₱208
Mocha	₱208
Iced Mocha	₱228
Peppermint Iced Mocha	₱230
Loose Leaf Teabags	₱126
Sodas	₱98
Bottle Water (Hope in a Bottle)	₱50

ENCHANTED KINGDOM, INC. SANTA ROSA CITY LAGUNA